

[1 EDW. 8. &
1 GEO. 6.]

*Ministry of Health
Provisional Order Confirmation
(Somerset and Wilts) Act, 1937.*

[Ch. xiii.]



CHAPTER xiii.

An Act to confirm a Provisional Order of the Minister of Health relating to the counties of Somerset and Wilts. A.D. 1937.
[25th March 1937.]

WHEREAS under the provisions of the Local Government Act 1933 the Minister of Health has made a provisional order which needs confirmation by Parliament : 23 & 24 Geo. 5. c. 51.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Somerset and Wilts) Act 1937. Short title.

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SCHEDULE.*Somerset
and Wilts
Order.*

COUNTIES OF SOMERSET AND WILTS.

Provisional Order made in pursuance of the Local Government Act 1933 for altering county boundaries.

WHEREAS by section 140 of the Local Government Act 1933 the Minister of Health is empowered to make a provisional order for the alteration of the boundary of a county;

And whereas a joint representation has been made to the Minister of Health by the county councils of Somerset and Wilts that it is desirable that the common boundary of the counties of Somerset and Wilts should be altered by the transfer of part of the parish of Southwick from the county of Wilts to the county of Somerset;

And whereas the Minister has decided to make a provisional order with a view to effect being given to the said proposal and to incidental and consequential arrangements:

Now therefore the Minister of Health in pursuance of the powers given to him by section 140 of the Local Government Act 1933 and of all other powers enabling him in that behalf hereby makes the following order:—

PART I.

PRELIMINARY.

Division of
order into
parts.

1. This order is divided into the following parts (namely):—

Part I.—Preliminary.

Part II.—Alteration of areas.

Part III.—Membership of councils &c.

Part IV.—Administration of justice education roads and
county administration.Part V.—Functions properties liabilities &c. of local
authorities.

Part VI.—Acts orders byelaws &c.

Part VII.—Rating and valuation.

Part VIII.—Officers.

Part IX.—Supplementary.

2. This order may be cited as the Somerset and Wilts Order 1936.

3. Save as otherwise expressly provided this order shall come into operation on the appointed day:

Provided that this order shall be deemed to have come into operation as from such date earlier than the appointed day as may be necessary for the following purposes (namely):—

- (a) the compilation alteration or re-arrangement of any register of electors under the Representation of the People Acts;
- (b) all proceedings preliminary or relating to any election under the Act of 1933 and to the holding of the annual assembly of a parish meeting and the business to be transacted at such assembly;
- (c) the alteration of valuation lists to take effect on the appointed day or the preparation or revision of any estimate of the produce of a penny rate or the preparation or service of any precept to be made in respect of the financial year commencing on the appointed day; and
- (d) the preparation of any rate to be made in respect of a period commencing on the appointed day.

4.—(1) The Interpretation Act 1889 applies to the interpretation of this order as it applies to the interpretation of an Act of Parliament.

Interpreta-
tion.

52 & 53 Vict.
c. 63.

(2) In this order unless the context otherwise requires the following expressions have the respective meanings hereby assigned to them:—

“the appointed day” means the first day of April nineteen hundred and thirty-seven;

“existing” means existing immediately before the appointed day;

“the map” means the map prepared in triplicate sealed with the official seal of the Minister and marked “Map referred to in the Somerset and Wilts Order 1936”;

“the counties” means the counties of Somerset and Wilts and “the county councils” means the county councils of Somerset and Wilts;

“the rural districts” means the rural districts of Warminster and Westbury and Frome and “the rural councils” means the councils of the rural districts;

“the parishes” means the parishes of Rode and Southwick;

“the transferred area” means that part of the parish of Southwick which is transferred to the county of Somerset;

“the Act of 1929” means the Local Government Act 1929;

19 & 20
Geo. 5. c. 17.

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—cont.

“ the Act of 1933 ” means the Local Government Act 1933;

“ road ” has the same meaning as in the Act of 1929; and

“ the Minister ” means the Minister of Health.

Regulations
under Act
of 1929.

5. This order shall have effect subject to the provisions of any regulations made or to be made by the Minister under Part VI of the Act of 1929 with respect to grants payable under that Part of that Act.

Sundays and
public
holidays.

6. Where the day or the last day on which any thing is required or permitted by or in pursuance of this order to be done is a Sunday Christmas Day Good Friday bank holiday or a day appointed for public thanksgiving or mourning the requirement or permission shall be deemed to relate to the first day thereafter which is not one of the days before mentioned.

Map.

7.—(1) One triplicate of the map shall be deposited in the office of each of the following persons (namely) :—

(a) the Minister;

(b) the clerk of the county council of Somerset; and

(c) the clerk of the county council of Wilts.

(2) Within one month after the confirmation of this order the clerk of the county council of Somerset shall send copies of the map each certified by him to be a true copy to the Board of Inland Revenue the Registrar-General the Board of Trade the Minister of Transport the Minister of Agriculture and Fisheries the Electricity Commissioners the Commissioners of Customs and Excise and the clerk of the council of each of the rural districts.

Copies of
map to be
evidence.

8.—(1) A copy of or an extract from the map certified by the clerk of the county council of Somerset or the clerk of the county council of Wilts to be a true copy or extract shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of the map or of that part of the map which is extracted so far as the map relates to the alteration of boundaries effected by this order.

(2) The triplicates of the map respectively deposited with the clerks of the county councils shall at all reasonable times be open to inspection by any person affected by this order and any such person shall be entitled to a copy of or an extract from the map which shall be certified to be a true copy or extract by the clerk of the county council furnishing the same on payment of a reasonable fee to be determined by the county council whose clerk he is.

(3) All fees so paid shall be carried to the credit of the county fund.

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PART II.

ALTERATION OF AREAS.

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9. That part of the parish of Southwick which is shown coloured pink on the map shall cease to form part of the county of Wilts and shall be transferred to the county of Somerset.

Alteration
of county
boundary.

10. The transferred area shall be transferred from the parish of Southwick and the rural district of Warminster and Westbury to the parish of Rode and the rural district of Frome.

Alteration of
districts and
parishes.

11. The transferred area shall be transferred to the Kilmersdon electoral division the Frome petty sessional division the No. 2 (South-eastern) coroner's district the Frome guardians' committee area and the Frome assessment area of the county of Somerset.

Electoral
divisions petty
sessional divi-
sions coroner's
districts
guardians' com-
mittee areas
and assessment
areas.

PART III.

MEMBERSHIP OF COUNCILS &C.

12.—(1) Any person who at the appointed day has been elected as a county councillor for any electoral division of either of the counties which is altered shall be deemed to have been elected for the altered electoral division.

Existing
county
councillors.

(2) Any casual vacancy which may exist at the appointed day in the office of county councillor for any electoral division of either of the counties which is altered shall be deemed to exist in the office of councillor for the altered electoral division.

13. Any person who at the appointed day has been elected as a rural district councillor for either of the existing parishes shall be deemed to have been elected for the altered parish.

Rural
district
councillors.

14. The persons who at the appointed day are the parish councillors of each of the existing parishes shall become the councillors of the altered parish.

Parish
councillors.

15.—(1) For the purpose of the determination of the qualification of a person for election as a member of the council of a county district or parish the alterations of area made by this order shall be deemed to have had effect on the first day of February nineteen hundred and thirty-six.

Qualifica-
tions of
members of
councils
joint boards
and
committees.

(2) Any person who continues in office after the appointed day as a member of the council of a county district or parish or as a member of a committee joint board or joint committee shall not during his existing term of office be deemed to lose his qualification for being a member by reason of any alteration of area made by this order and shall retire from office on the day on which he would have retired if this order had not been made.

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PART IV.

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Order.*

ADMINISTRATION OF JUSTICE EDUCATION ROADS AND
COUNTY ADMINISTRATION.

Administra-
tion of
justice
lieutenant
territorial
army &c.

16.—(1) For the purposes of any commission of assize oyer and terminer or gaol delivery and for the purposes of sheriff lieutenant and territorial army and the making up of the jurors book and the qualification and service of jurors the transferred area shall form part of the county of Somerset.

(2) For the purposes of the functions of the quarter sessions justices coroners clerk of the peace and clerks to justices of the county of Somerset and of the police constables and other peace officers of that county the transferred area shall form part of that county.

(3) Lists of prisoners who are in the custody of the sheriff of the county of Wilts writs process and particulars and all records and documents in his possession appertaining to the transferred area shall be delivered turned over transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office as if the sheriff of the county of Somerset were as respects that area the new sheriff in succession to the sheriff of the county of Wilts.

(4) Notwithstanding the foregoing provisions of this section—

- (a) every person committing an offence before the appointed day in any area affected by this order shall be tried and dealt with as if this order had not been made; and
- (b) every proceeding which has been begun before the appointed day by or before any court justice coroner or sheriff in relation to any matter arising in or concerning any such area may be continued and completed in like manner and with the like incidents and consequences as nearly as may be as if this order had not been made.

Roads.

17. Any functions with respect to unclassified roads which may have been delegated by the Somerset county council to the rural district council of Frome shall be deemed to have been delegated to that council with respect to the whole of the unclassified roads in the altered rural district of Frome.

Saving for
private
street works.
55 & 56 Vict.
c. 57.

18.—(1) Nothing in this order shall affect any notices given or proceedings taken under the Private Street Works Act 1892 by the Wilts county council in relation to any street within the transferred area and any proceedings taken or works commenced thereunder in relation to such street may be continued and

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completed in accordance with the provisions thereof by the Somerset county council as if that council had given the notices and taken the proceedings or commenced the works thereunder.

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(2) Where before the appointed day any works under the Private Street Works Act 1892 have been commenced but not completed in a street within the transferred area the Somerset county council shall be entitled to recover—

- (a) such of the expenses incurred in commencing the works as the Wilts county council could have recovered under that enactment; and
- (b) such of the expenses incurred by them in completing the works as the Wilts county council could have recovered under that enactment had they completed the works;

and the Somerset county council shall have all such powers for the recovery of the expenses aforesaid as they would have had if they had executed the whole of such works.

19.—(1) The Minister may by order at any time after the confirmation of this order make such provisions as appear to him to be necessary for transferring to the insurance committee for the county of Somerset such of the property rights and liabilities of the insurance committee for the county of Wilts as relate to persons resident in the transferred area. Insurance committees.

(2) An order made under this section may authorise the insurance committee for the county of Wilts to continue to act as insurance committee for the transferred area until such date not being later than the thirty-first day of December nineteen hundred and thirty-seven as may be specified in the order and may for that purpose postpone the operation of this order so far as relates to the rights and duties of the respective insurance committees for the counties until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient.

(3) An order under this section may be revoked revised or amended by an order made in like manner as the original order.

(4) Subject to any order under this section the persons who immediately before the appointed day are members of the insurance committee for the county of Somerset or the county of Wilts shall be deemed to have been appointed or elected as and shall be the members of the insurance committee for that county as altered.

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Adminis-
trative
schemes.

Settlement
and irre-
movability
&c.

20. The administrative schemes of the county councils under the Act of 1929 shall have effect subject to the modification that any references to either of the existing rural districts shall be read as references to the altered rural district.

21.—(1) Every person resident immediately before the appointed day in any part of the transferred area who has acquired or is in the course of acquiring—

(a) a settlement in the county of Wilts by reason of residence birth or other qualification therein; or

(b) a status of irremovability from the county of Wilts by reason of residence therein;

shall be deemed to have acquired or to be in the course of acquiring thereby as the case may require a settlement in or a status of irremovability from the county of Somerset.

(2) For the purposes of this section consecutive periods of residence by a person in any part of the county of Wilts (if and so far as those periods would immediately before the appointed day be reckoned for the purposes of determining questions of settlement in or irremovability from that county) shall be aggregated and reckoned as continuous residence in that part of the county of Wilts in which the person was residing immediately before the appointed day.

(3) Where immediately before the appointed day a person is in receipt of poor relief from the Wilts county council as an inmate of an institution or of rate aid from the county council as an inmate of an institution for persons of unsound mind and was resident immediately before he last commenced to receive poor relief or such rate aid in any part of the transferred area he shall for the purposes of the foregoing provisions of this section be deemed to be resident in that area immediately before the appointed day.

(4) The liability for the cost accruing on and after the appointed day of the maintenance of an inmate of an institution to whom subsection (3) of this section applies shall by virtue of this order be transferred to and attach to the Somerset county council but this subsection shall not prevent that council from obtaining an order of removal or an adjudication of the chargeability of any person who notwithstanding the provisions of this section is liable to be removed or made chargeable to any other county or county borough.

(5) Nothing in this section shall authorise the inclusion in any computation of a period of residence for the purposes of this section of such residence as is excluded by subsection (1) of section 93 of the Poor Law Act 1930 from a computation of

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residence for the purpose of the acquisition of a status of irremovability or shall prevent any residence so excluded from breaking the continuity of residence for the purpose of the acquisition by residence of a settlement.

22.—(1) Where immediately before the appointed day a person is in receipt of rate aid from the Wilts county council under the Mental Deficiency Acts 1913 to 1927 as an inmate of an institution for mental defectives or approved home and was resident immediately before he last commenced to receive such rate aid in any part of the transferred area he shall for the purposes of subsections (1) and (2) of the last preceding section be deemed to be resident in that part immediately before the appointed day.

(2) The liability for the cost accruing on and after the appointed day of the maintenance in any institution for mental defectives or approved home of any inmate to whom subsection (1) of this section applies shall by virtue of this order be transferred to and attach to the Somerset county council.

23. For the purposes of the preparation in the year nineteen hundred and thirty-seven of the register of local government electors and of all matters connected with incidental to or consequent upon those purposes the transferred area shall be deemed to have been transferred to the county of Somerset as from the twenty-eighth day of February nineteen hundred and thirty-seven.

24.—(1) The registration officer of the parliamentary county of Wilts shall on publication supply the registration officer of the parliamentary county of Somerset with a sufficient number of copies of the electors lists the lists of objections to the electors lists the lists of claimants and the lists of objections to claimants for each registration unit comprising any part of the transferred area and shall forthwith notify the registration officer of the parliamentary county of Somerset of his decisions on any objections or claims in respect of any such registration unit.

(2) It shall be the duty of the registration officer of the parliamentary county of Somerset in relation to the transferred area to issue such notices and otherwise to take such steps as are required by rule 23 in the First Schedule to the Representation of the People Act 1918 in order to secure that no person is registered as a local government elector in respect of more than one qualification in the same electoral division for the purpose of county council elections or in the same parish for the purpose of rural district or parish council elections.

(3) Where the registration officer of the parliamentary county of Somerset considers (whether on account of an expression

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—cont.

Inmates of
institutions
or approved
homes for
mental
defectives.

Qualifying
period for
local govern-
ment
electors.

Duplicate
entries in
electors
lists.

7 & 8 Geo. 5.
c. 64.

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A.D. 1937. of choice by a person affected by a duplicate entry or otherwise)
 — that any correction required for any of the purposes mentioned
Somerset in the foregoing provisions should be made in the electors lists
and Wilts for any registration unit comprising any part of the transferred
Order. area he shall forthwith notify the registration officer of the
 PART IV. parliamentary county of Wilts and that officer shall make such
 —cont. correction accordingly.

(4) This section shall apply to the preparation of the register of electors in the year nineteen hundred and thirty-seven and of later registers of electors.

Registers of electors.

25.—(1) If the register of local government electors for any electoral area affected by this order is not so framed as to show the persons entitled to vote at an election or parish meeting to be held for any electoral division parish or other voting area—

(a) the registration officer of the parliamentary county of Somerset in the case of an election or parish meeting for any voting area within the altered county of Somerset; and

(b) the registration officer of the parliamentary county of Wilts in the case of an election or parish meeting for any voting area within the altered county of Wilts;

shall make such alteration or re-arrangement of the register as may be necessary for the purpose of that election or parish meeting.

(2) It shall be the duty of the clerk of each of the rural councils and of every officer designated for the performance of the duties of overseers in relation to the preparation of the registers of electors in either of the rural districts to render such assistance as may be required by a registration officer for the purpose of any alteration or re-arrangement authorised by this section of the registers for that district or any area transferred thereto or therefrom.

(3) Any additional expense incurred by a registration officer solely for the purpose of making any alteration or re-arrangement of a register under this section shall be defrayed by the county council whose officer he is.

Nursing homes.

26.—(1) The clerk of the Wilts county council shall send to the clerk of the Somerset county council copies of all entries in the register of nursing homes kept by the former authority under the Nursing Homes Registration Act 1927 relating to premises in the transferred area.

17 & 18

Geo. 5. c. 38.

(2) It shall be the duty of the clerk of the Somerset county council to include any particulars furnished to him under the

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provisions of this section in the register of nursing homes kept by the Somerset county council. A.D. 1937.

(3) Any exemption in force under the said Act in respect of premises within the transferred area shall continue in force until the exemption expires.

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PART IV.
—cont.

27. Any order in force under the Wild Birds Protection Acts 1880 to 1908 throughout the parish of Rode shall apply to the transferred area and any order under the said Acts which may have been in force in the transferred area shall cease to apply thereto. Wild birds protection orders.

28. For the purposes of summoning jurors and of jury service each of the parishes shall be deemed to continue in existence unaffected until a new jurors book comes into force. Jury service.

PART V.

FUNCTIONS PROPERTIES LIABILITIES &C. OF LOCAL AUTHORITIES.

29. Subject to the provisions of this order all functions property (not being property held on any charitable trust) and liabilities vested in or attaching to either of the county councils or rural councils shall be discharged or held by the council for the benefit or in respect of their altered county or district : Altered counties and rural districts.

Provided that—

- (a) any functions property or liabilities so vested or attaching to either of the county councils in relation exclusively to any part of the county shall be discharged or held for the benefit or in respect of that part or if the part is altered for the benefit or in respect of the altered part ;
- (b) any functions property or liabilities so vested or attaching to either of the rural councils in relation exclusively to any contributory place shall be discharged or held for the benefit or in respect of that contributory place or if the contributory place is altered for the benefit or in respect of the altered contributory place ;
- (c) any property or liabilities vested in or attaching to the county council of Wilts or the rural district council of Warminster and Westbury in relation exclusively to the transferred area or any part thereof shall by virtue of this order be transferred to and vest in or attach to the county council of Somerset or the rural district council of Frome as the case may be.

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PART V.
—cont.
Parishes.

30. All functions property (not being property held on any charitable trust) and liabilities vested in or attaching to the parish council of either of the existing parishes shall be discharged or held by them for the benefit or in respect of the altered parish :

Provided that any property or liabilities so vested in or attaching to the parish council of Southwick in relation exclusively to the transferred area or any part thereof shall by virtue of this order be transferred to and vest in or attach to the parish council of Rode..

Housing
schemes.

26 Geo. 5. &
1 Edw. 8.
c. 51.

31. Any houses or land held by the rural district council of Warminster and Westbury within the transferred area for the purposes of the Housing Act 1936 shall by virtue of this order be transferred to and vest in the rural district council of Frome.

Transferred
property and
liabilities.

32. All property and liabilities transferred to the rural district council of Frome and the parish council of Rode respectively shall be held or discharged by them for the benefit or in respect of their altered district or parish.

Mortgage
and other
securities.

33.—(1) Where by this order or by any adjustment made in consequence thereof the liability for the repayment of the whole or any part of a debt secured by a mortgage of a public body or their predecessors in title is transferred from or by one public body (in this subsection referred to as the transferor authority) to another public body (in this subsection referred to as the transferee authority) then in each such case the mortgage shall thenceforward take effect in all respects as a mortgage by the transferee authority of their revenues to secure the debt or part of the debt transferred and the interest thereon and a mortgage by the transferor authority of their revenues to secure the part (if any) of the debt for the repayment of which they remain liable and the interest thereon and the covenants contained in the mortgage so far as they relate to the debt or part of the debt transferred or the interest thereon shall be enforceable against the transferee authority and so far as they relate to the part (if any) of the debt for the repayment of which the transferor authority remain liable and the interest thereon shall be enforceable against the transferor authority.

(2) Subject as aforesaid where by this order or by any adjustment made in consequence thereof any liability or part of a liability which is charged on any fund or revenues of a public body is transferred to another public body the liability so transferred shall thenceforward be charged indifferently on all the revenues of the public body to whom it is transferred and shall cease to be a charge on the fund or revenues on which it was theretofore charged.

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PART VI.

ACTS ORDERS BYELAWS &C.

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Order.*
Protective
sections.

34. The provisions of any protective section for the benefit of any public body affected by this order (or the predecessors of that public body) which may be contained in any local Act provisional order confirmation Act or order having the force of an Act by whomsoever obtained so far as they relate to or affect the transferred area shall enure to the benefit as the case may require of the public body of the area to which that area is transferred and in relation thereto those provisions shall be construed as if a reference to that public body were substituted therein for any reference to the public body mentioned therein.

35. References in the following orders which are applicable to either of the existing rural districts shall be read as references to that altered district:—

Orders
relating to
certain joint
committees.

The Shepton Mallet Joint Isolation Hospital Order 1932;

The Trowbridge and District Hospital (County of Wilts) Order 1900.

36. Any order in force under the Infectious Disease (Notification) Act 1889 throughout the rural district of Frome shall apply to the transferred area and any such order under the said Act which may have been in force in the transferred area shall cease to apply thereto.

Infectious
Disease
(Notifica-
tion) Act
1889.

52 & 53 Vict.
c. 72.

37. The scheme made under the Housing (Rural Workers) Acts 1926 and 1931 by the Somerset county council shall apply to the transferred area and the scheme of the Wilts county council under the said Acts shall cease to apply to the transferred area.

Housing of
rural
workers.

16 & 17 Geo. 5.
c. 56.
21 & 22 Geo. 5.
c. 22.

38. Nothing in this order shall prejudice or affect any order in force under the Shop Hours Act 1904 or under the Shops Acts 1912 to 1936 in any area affected by this order and that order shall subject to the provisions of those Acts remain in force and apply to the area to which it applied immediately before the appointed day.

Orders
relating to
shops.

4 Edw. 7.
c. 31.

39.—(1) Subject to the provisions of this order the provisions of any public general Act in force throughout either of the rural districts by virtue of an adoption by the council thereof or their predecessors and any order in force under such Act throughout the district shall apply to the altered district and shall cease to have effect in relation to any area transferred therefrom.

Adoptive
Acts.

(2) Subject to the provisions of this order the provisions of any adoptive Act in force throughout either of the existing parishes shall apply to the altered parish and shall cease to have effect in relation to any area transferred therefrom.

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PART VI.

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Orders under
the Public
Health Acts
Amendment
Act 1907
and the
Public
Health Act
1925.7 Edw. 7. c. 53.
15 & 16 Geo. 5.
c. 71.Urban
powers and
special
expenses.County
byelaws.

18 & 19

Geo. 5. c. 32.

7 Edw. 7.

c. 27.

15 & 16

Geo. 5. c. 52.

District
byelaws
regulations
scales of
charges &c.

(3) In the last preceding subsection the expression “ adoptive Act ” means any Act which is in force by virtue of its adoption by a parish meeting or other parochial authority.

40. Subject to any order which the Minister or the Secretary of State may make to take effect on or after the appointed day any order by virtue of which any Part or section of the Public Health Acts Amendment Act 1907 or the Public Health Act 1925 is in force throughout the contributory place of Rode in the rural district of Frome or the contributory place of Southwick in the rural district of Warminster and Westbury and any other order under either of those Acts so in force shall apply to the altered contributory place.

41. All the functions of an urban authority and all the powers in relation to the chargeability of expenses with which either of the rural councils are invested by any order of the Local Government Board or the Minister under the Public Health Acts 1875 to 1932 in respect of the whole of their district or in respect of any contributory place which becomes an altered contributory place of their district shall be discharged by that council in respect of the altered district or contributory place as the case may be.

42.—(1) Any byelaws made by the Wilts county council under section 11 of the Petroleum (Consolidation) Act 1928 or the Advertisements Regulation Acts 1907 and 1925 and in force within the transferred area shall continue to apply to the transferred area for a period of three years after the appointed day unless previously repealed or altered but save as aforesaid shall on the expiration of that period cease to be in force within the transferred area.

(2) In their application to the transferred area any byelaws so continued in force therein shall have effect as if they had been made by the Somerset county council and any proceedings which if this order had not been made might have been taken by the Wilts county council in respect of a contravention of or failure to comply with those byelaws before the appointed day within the transferred area may be taken by the Somerset county council.

(3) Subject as aforesaid any byelaws made by either of the county councils or the standing joint committee of either of the counties and in force within either of the rural districts or parishes shall apply to the altered district or parish.

43.—(1) Any local government byelaws in force in the transferred area which were made by the rural district council of Warminster and Westbury or their predecessors shall continue to apply to the transferred area and shall have effect therein as if they had been made by the rural district council of Frome.

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(2) Any proceedings which if this order had not been made might have been taken by the rural district council of Warminster and Westbury in respect of an offence committed before the appointed day against any byelaws which by this section are continued in force in the transferred area may be taken by the rural district council of Frome.

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PART VI.
—cont.

(3) All byelaws other than local government byelaws and any scale of charges made by either of the rural councils and in force throughout their existing district shall apply to the altered district until repealed or altered.

(4) In this section the following expressions have the respective meanings hereby assigned to them:—

- (i) “byelaws” includes any regulation and “local government byelaws” means byelaws which if made on the appointed day would require to be confirmed by the Minister;
- (ii) “scale of charges” includes any list of tolls or table of fees or payments not prescribed by byelaws.

44. Any byelaws in force which were made by the parish council of Southwick for the regulation of any property which is transferred to the parish council of Rode shall have effect as if they had been made by the latter parish council.

Parish
byelaws.

PART VII.

RATING AND VALUATION.

45. The County of Somerset (Assessment Areas and Assessment Committees) Scheme 1926 and the County of Wilts (Assessment Areas and Assessment Committees) Scheme 1934 respectively shall have effect subject to the modification that any reference to either of the rural districts shall be read as a reference to that altered district.

Assessment
areas and
assessment
committees.

46.—(1) Before the appointed day such alterations of the valuation lists in force shall be made as may be necessary for the purpose of ensuring that the valuation list of each of the rural districts shall correspond with the altered areas.

Valuation
lists.

(2) For this purpose the clerk of the rural district council of Warminster and Westbury shall not later than the twenty-fifth day of March nineteen hundred and thirty-seven send to the clerk of the rural district council of Frome and to the clerk of the Frome assessment committee copies of all entries in the valuation list of the rural district of Warminster and Westbury which relate to hereditaments within the transferred area including any hereditament which by reason of the transfer

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Order.

PART VII.

—cont.

becomes two or more hereditaments one or more of which is situate within the transferred area and shall cancel the entries in the valuation list.

(3) The clerk of the rural district council of Frome shall incorporate the copies of entries received by him under the last preceding subsection with the valuation list of the rural district of Frome and the clerk of the Frome assessment committee shall incorporate the copies of entries so received by him with the copy in his possession of that valuation list :

Provided that the provisions of this subsection shall not extend to copies of entries relating to any hereditament which by reason of the transfer of an area becomes two or more hereditaments.

Valuation
of divided
heredita-
ments.

47.—(1) The provisions of the last preceding section shall have effect subject to the provisions of this section.

(2) Where by reason of the transfer of the transferred area any hereditament is divided into two or more hereditaments the rural councils shall forthwith take all necessary steps in accordance with the provisions of the Rating and Valuation Acts 1925 to 1932 to secure that the separate hereditaments are correctly entered in the appropriate valuation lists.

Rating of
owners and
discount
for rates.

48. Any direction for the rating of owners or the allowance of a discount in respect of rates which may be in force in either of the rural districts shall apply to the altered district.

Precepts.

49.—(1) Precepts of the county councils for the financial year commencing on the appointed day shall be based on the counties rural districts and parishes as altered by this order.

(2) The clerks of the county councils shall make such adaptations of and alterations in the estimates of the produce of a rate of a penny in the pound furnished to the county councils by the rural councils respectively as may be necessary to bring those estimates into conformity with the alteration of rating areas and parishes.

(3) It shall be the duty of the clerks of the rural councils to supply the clerks of the county councils with such information as they may require for the purpose of giving effect to the provisions of subsection (2) of this section.

(4) Notwithstanding the alterations of area effected by this order all precepts made in respect of a financial period commencing before the appointed day shall be as valid in law as if this order had not been made.

Arrears of
rates.

50. All rates made but not collected at the appointed day in respect of hereditaments situate within the transferred area shall be collected and recovered by the rural district council of Frome.

[1 EDW. 8. & Ministry of Health [Ch. xiii.]
1 GEO. 6.] Provisional Order Confirmation
(Somerset and Wilts) Act, 1937.

PART VIII.

A.D. 1937.

OFFICERS.

51.—(1) Every officer in office on the date of the confirmation of this order who by virtue of this order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by reason of the determination of his appointment or the diminution of his emoluments and for whose compensation for that loss no other provision is made by any enactment or any other statutory order for the time being in force shall be entitled to compensation under this order for that loss.

*Somerset
and Wilts
Order.*
Compensa-
tion.

(2) Any compensation payable under this order to an officer shall be awarded and paid by the Somerset county council and any claim for compensation shall be made by the officer accordingly.

(3) For the purposes of the determination and payment of compensation to officers under this order the provisions set out in the Fourth Schedule to the Act of 1933 are hereby incorporated with this order.

PART IX.

SUPPLEMENTARY.

52.—(1) Any resolution passed or other proceeding taken by the rural district council of Warminster and Westbury under the Housing Acts (including orders notices agreements undertakings and demands made given or entered into under any of those Acts) may so far as the resolution or proceeding relates to any houses buildings or land within the transferred area be carried into effect or continued by the rural district council of Frome as if the resolution or proceeding had been passed or taken by them.

(2) References to the rural district council of Warminster and Westbury in any order made by that council under the Housing Acts or any of them and confirmed or approved by the Minister shall so far as the order relates to houses buildings or land within the transferred area be read as references to the rural district council of Frome.

(3) For the purposes of this section the expression the Housing Acts has the same meaning as in the Housing Act 1936.

53.—(1) In this section—

“the Act of 1932” means the Town and Country Planning Act 1932 or any enactment thereby repealed; and

“a joint committee” means a joint committee within the meaning of the Act of 1932.

Town and
country
planning.
22 & 23
Geo. 5. c. 48.

[Ch. xiii.] *Ministry of Health* [1 EDW. 8. &
Provisional Order Confirmation 1 GEO. 6.]
(Somerset and Wilts) Act, 1937.

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—
*Somerset
and Wilts
Order.*
PART IX.
—cont.

(2) Any resolution passed or other proceeding taken by or on behalf of the rural district council of Warminster and Westbury under the Act of 1932 (including agreements orders and consents entered into made or given thereunder) shall so far as it affects land included in the transferred area have effect as if the same had been passed or taken by the urban district council of Frome.

(3) Any dispensation approval or consent given by the Minister under or in pursuance of the Act of 1932 to the rural district council of Warminster and Westbury or to a joint committee acting on behalf of that council shall so far as it affects land or the planning of land included in the transferred area have effect as if the same had been given to the urban district council of Frome.

(4) Nothing in this section shall cause the urban district council of Frome to become a constituent authority of any joint committee.

Local land
charges
registers.

54.—(1) The local land charges registrar (hereinafter referred to as the registrar) for the county of Wilts shall within fourteen days after the appointed day supply to the registrar for the county of Somerset an office copy of every entry in the land charges register (hereinafter referred to as the register) of the county of Wilts relating to a charge affecting land within the transferred area.

(2) The registrar for the rural district of Warminster and Westbury shall within fourteen days after the appointed day supply to the registrar for the rural district of Frome an office copy of every entry in the register of the first mentioned district relating to a charge affecting land within the transferred area.

15 & 16

Geo. 5. c. 22.

(3) The registrars for the county of Wilts and the rural district of Warminster and Westbury shall be paid by the Somerset county council and the rural district council of Frome respectively in respect of each office copy supplied by him under the foregoing provisions such fees as are prescribed by the rules under the Land Charges Act 1925.

(4) The registrars for the county of Somerset and the rural district of Frome respectively shall within fourteen days after the receipt of an office copy under the foregoing provisions enter the particulars contained therein with any necessary modifications in the appropriate part of the register of the county or district as the case may be.

(5) Until the first day of May nineteen hundred and thirty-seven or until the date on which all the entries required by the foregoing provisions have been made in the register of the county of Somerset or the rural district of Frome as the case may be

[1 EDW. 8. & Ministry of Health [Ch. xiii.]
1. GEO. 6.] Provisional Order Confirmation
(Somerset and Wilts) Act, 1937.

whichever is the earlier the following provisions shall have effect in relation to land within the transferred area :—

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*Somerset
and Wilts
Order.*
PART IX.
—cont.

- (a) where application is made by any person for a personal search in the register of the county of Somerset or the rural district of Frome the registrar shall give notice to the applicant that additional search should be made in the register of the county of Wilts or the rural district of Warminster and Westbury as the case may require;
- (b) where application is made for an official search in the register of the county of Somerset or the rural district of Frome the registrar shall issue free of charge a certificate of official search in that register and shall forward to the registrar of the county of Wilts or the rural district of Warminster and Westbury as the case may require the application received by him together with the fees paid in respect thereof;
- (c) the registrars for the county of Wilts and the rural district of Warminster and Westbury respectively shall permit and make such searches and furnish such office copies and certificates as they would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as they would have possessed and been subject to if this order had not been made;
- (d) where an entry of a charge which has been duly made in a register is required by this section to be transferred from that register to another register such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register to which it is required to be transferred.

55. Any power of appointing trustees of a charity subject to the jurisdiction of the Charity Commissioners which is exerciseable by the council of any of the rural districts or parishes or by any parish meeting and which ceases to be exerciseable in consequence of any alteration of area by this order may be exercised by such council or parish meeting as the Charity Commissioners may direct but nothing in this section shall in any way prejudice or affect the power of the Charity Commissioners under the Charitable Trusts Acts 1853 to 1925 to establish a scheme for the regulation of the charity. Charities.

56.—(1) Any provision contained in any local Act provisional order confirmation Act or order having the force of an Act by whomsoever obtained or in any instrument entered into in pursuance of any such enactment conferring on the rural district Purchase of electricity undertakings.

[Ch. xiii.] *Ministry of Health* [1 EDW. 8. &
Provisional Order Confirmation 1 GEO. 6.]
(Somerset and Wilts) Act, 1937.

A.D. 1937. council of Warminster and Westbury a right of purchasing an electricity undertaking shall so far as that right relates to the transferred area enure to the benefit of the rural district council of Frome and in relation to such area shall be construed as if a reference to the rural district council of Frome were substituted in the provision for any reference to the rural district council of Warminster and Westbury.

—
Somerset and Wilts Order.
 PART IX.
 —cont.

(2) Any right of purchasing an electricity undertaking which enures to the benefit of the rural district council of Frome under subsection (1) of this section and any such right conferred by the Electricity (Supply) Acts 1882 to 1936 and which accrues to that authority by reason of an alteration of area made by this order shall not be exercised by them without the consent of the Electricity Commissioners.

Existing contracts &c. and proceedings.

57.—(1) Save as otherwise expressly provided all contracts deeds bonds agreements and instruments subsisting in favour of or against and all notices in force which were given by or by the predecessors of any public body in relation exclusively to the transferred area or any part thereof shall be of full force and effect as the case may require in favour of or against the public body of the area to which the transferred area is transferred.

(2) If immediately before the appointed day any action or proceeding or any cause of action or proceeding is pending or existing by or against any public body in relation to a matter exclusively affecting the transferred area or any part thereof the same shall not be prejudicially affected by reason of this order but may be continued prosecuted and enforced by or against as the case may require the public body of the area to which the transferred area is transferred.

(3) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this order.

General savings.

58. Nothing in this order shall—

(a) restrict any statutory powers of the Minister or the Registrar-General or restrict the powers of the Secretary of State or the county council under the Local Government Act 1894 the Act of 1929 or the Act of 1933;

56 & 57 Vict. c. 73.

(b) affect the powers of either of the county councils for the division of the parliamentary county into polling districts for parliamentary elections or for the division of the county into polling districts for the election of county councillors or any existing order or scheme for

[1 EDW. 8. & *Ministry of Health* [Ch. xiii.]
1 GEO. 6.] *Provisional Order Confirmation*
(*Somerset and Wilts*) Act, 1937.

either of those purposes or for naming the polling places at any election; A.D. 1937.

(c) affect the area of any district or sub-district for the purposes of the Births and Deaths Registration Acts 1836 to 1929 or the Marriage Acts 1811 to 1934;

—
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and Wilts
Order.*
PART IX.
—cont.

(d) affect the ecclesiastical divisions of any parish or the constitution of any ecclesiastical parish or prejudice vary or affect any power right interest or jurisdiction in over or in connection with any charitable endowment;

(e) affect any right or interest under any inclosure award;

(f) alter the area for the supply of gas water or electricity by any company body or local authority under any local Act provisional order confirmation Act or order made in pursuance of the Gas Undertakings Acts 1920 to 1934 or the Electricity (Supply) Acts 1882 to 1936 or shall prejudice or affect the existing powers or charges of any such company body or local authority under any such Act or order;

(g) affect land tax; or

(h) affect any limitation on the duration of any byelaw imposed by the Public Health Act 1936.

26 Geo. 5. &
1 Edw 8.
c. 49.

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